

Stereo.HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

C.R. No.157-D of 2008

Muhammad Zubair
v.
Muhammad Tahir Shafiq and another

J U D G M E N T

Date of hearing	23.2.2026
Petitioner by	Malik Muhammad Aslam and Muhammad Aslam Khan Dhukkar, Advocates.
Respondent No.1 by	Proceeded against <i>ex parte</i> .
Respondent No.2 by	Syed Rafaqat Hussain, Advocate.

Rasaal Hasan Syed, J. The petitioner in this revision petition has challenged judgment dated 30.10.2007 and 27.3.2008 passed by courts below whereby suit for preemption was dismissed and appeal thereagainst met the same fate.

2. Facts in brief are that to preempt sale of property sold through sale deed dated 30.3.2004 by Farhat Nawaz wife of Sheikh Naeem in favour of Muhammad Tahir Shaffique and Moeen-ud-Din, respondents herein, petitioner instituted a suit for preemption, which was contested by respondents on the grounds, amongst others, that requisite *Talbs* under section 13 of Punjab Preemption Act, 1991 having not been made the right of preemption extinguished and suit was not maintainable. Issues were framed and evidence was recorded whereafter the learned Civil Judge dismissed the suit vide

judgment and decree dated 30.10.2007. Petitioners' appeal thereagainst was also dismissed by learned Addl. District Judge vide judgment dated 27.3.2008. These judgments have been challenged in the instant revision petition.

3. On 23.5.2011 petitioner Muhammad Zubair and respondent No.2 Moeen-ud-Din in the instant C.R. in C.M. No.2272 of 2011 claimed that a compromise "Mark-A" had been effected between the parties and that the statements of parties be recorded which was so done wherein respondent No.2 stated that as per compromise "Mark-A" he did not oppose the grant of decree for preemption in its terms.

4. Another application for compromise C.M. No.2560 of 2011 along with a compromise deed "Mark B" between petitioner and respondent No.1 Muhammad Tahir Shafique was filed on 06.6.2011 by the petitioner in terms whereof it was stated that respondent No.1 Muhammad Tahir Shafique vendee had sold out five shops Nos. 8 to 12 covering an area of 907 sq. ft. before the filing of suit and that to the extent of remaining two shops bearing Nos. 5 and 6 measuring 250 sq. ft. said respondent had no objection to the acceptance of the instant C.R. and that the decree of the courts below be set aside and suit of petitioner Muhammad Zubair be decreed. On the basis of compromise "Mark-A" and "Mark-B" in C.M. No. 2272 of 2011 and C.M. No. 2560 of 2011, statement of the parties was recorded to the extent of properties mentioned therein, and instant revision petition was accepted and suit was ordered to be decreed to that extent.

5. Mehmood Hussain son of Fazal Muhammad filed C.M. No.3017 of 2011 under section 12(2), C.P.C. and

stated that he had purchased through registered sale deed dated 10.7.2004 one shop from respondent No.1 Muhammad Tahir Shafique and also purchased two shops measuring $1\frac{1}{4}$ marlas from respondent No.2 Moeen-ud-Din through registered sale deed No.5155 dated 30.8.2010 and mutation No.15405 was attested on 30.11.2020. The compromise and also the decree passed on the basis of said compromise dated 23.5.2011 were challenged. It was claimed that Mehmood Hussain having purchased a portion of property through registered sale deed dated 10.7.2004 from respondent No.1 and another portion of property from respondent No.2 vide sale deed dated 30.8.2010, respondents could not surrender any part of property which they had already sold and that the decree be set aside. C.M. No.3017 of 2011 under section 12(2), C.P.C. was allowed vide Order dated 09.2.2012 and Order dated 30.5.2011 was set aside and decree was modified and instant revision petition was dismissed.

6. Petitioner Muhammad Zubair challenged this Order before the Supreme Court of Pakistan through C.P.L.A. No.639 of 2012 wherein leave was granted vide Order dated 11.2.2013 and the petition was converted into C.A. No.50 of 2013 which was partially allowed vide Order dated 05.4.2016. In the appeal it was observed by the Supreme Court Of Pakistan that the surrender of property by respondent Nos.1 and 2 after having sold the rights and interest therein through two different sale deeds, respondent Nos.1 and 2 fraudulently deposed as they had no right to enter into any compromise because they were no longer vested with any right in the property. In the circumstances the Order of this Court was affirmed to the extent of compromise by petitioners and respondents. The operative part of the Order dated

08.4.2016 of Supreme Court of Pakistan is reproduced below for reference:

“6. It appears from the record that the appellant filed a suit for pre-emption, which was dismissed. The appeal filed by him was also dismissed, whereafter the appellant invoked the Revisional jurisdiction of the learned High Court. Respondents No.1 and 2 who were the original defendants in the suit and respondents in the Civil Revision, sold their right and interest in the property in dispute in favour of respondent No.3 through two separate registered sale deeds. On the date, when the compromise was given effect to before the learned High Court, respondents No.1 and 2 were no longer vested with any right in the property having sold the same to respondent No.3, hence, surrender of any such right or part thereof in favour of the appellant was for all intents and purposes fraudulent specially when the fact of such transfer was deliberately not disclosed to the learned High Court. In the circumstances, the learned High Court has rightly set aside the order dated 23.5.2011 passed on the basis of a so called compromise.

7. The only question that remains to be answered is whether the Civil Revision filed by the present appellant could be dismissed automatically without adverting to the merits thereof. We believe that the correct course of action, would be to revive the Civil Revision so that the same can be decided afresh on merits, which is the logical and legal outcome of setting aside the order dated 23.5.2011.

8. In this view of the matter, the impugned judgment is maintained to the extent of setting aside the order dated 23.5.2011, however, civil revision No.157/D /2008 is required to be resurrected and to be decided on merits by the learned High Court. Respondent No.3 may make any application to be impleaded as a party, which may be decided in accordance with law.

9. Consequently, the Civil Appeal is partially allowed, and the impugned judgment is maintained to the extent that it set asides the order dated 23.5.2011. However, to the extent of dismissal of Civil Revision No.157-D of 2008, the said judgment is set aside, and the Civil Revision is resurrected to be decided afresh on its own merits and in the light of the observations made herein above”.

7. In the light of observations of Supreme Court in the Order, C.M. No.4846 of 2016 for impleadment was filed by Mehmood Hussain son of Fazal Din which was declined vide Order dated 13.9.2022. This Order was challenged in C.P.L.A. No.3837 of 2022 which was

disposed of vide Order dated 10.11.2025 as withdrawn with the observations as follows:

“2. In view of the above, this petition is dismissed being not pressed. However, the learned High Court is directed to decide the fate of the Civil Revision Petition on merits within a period of three months (excluding public holidays) from the date of receipt of this order”.

8. In the above scenario this revision petition has been heard on merits which is being decided by instant judgment.

9. Facts as are discernible from the available record are that petitioner Muhammad Zubair instituted a suit for possession through preemption against respondent Nos.1 and 2 Muhammad Tahir Shafique and Moeen-ud-Din on the ground that he had superior right of preemption as against the vendee and that he was entitled to a decree for possession through preemption. Claim set up in the plaint was that land measuring $12\frac{3}{4}$ marlas comprising khata No.190/154-min was owned by Mst. Farhat Nawaz widow of Sh. Muhammad Naeem who sold the same to respondent No.2 for a consideration of Rs.8,00,000/- vide sale deed dated 30.3.2004; that respondent No.2 demolished the structure and converted it into shops and that the petitioner came to know of the sale on 16.5.2004 at 8:00/9:00 a.m when the petitioner was sitting in front of his house along with Shahid Aziz, Rafique and Muhammad Ismail where Muhammad Iqbal had allegedly broken the news of sale of property. It was claimed that the petitioner immediately declared his intention to exercise the right of preemption and rushed towards the suit property where the vendee was watching the demolition of property structure and that he expressed his intention to preempt the same and asked them to refrain from demolishing the property which request was

not acceded to and thereafter the petitioner sent a notice of *Talb-e-Ishhad* through Registered Post A.D. on 24.5.2004 informing that the property was required by him as of *zaroorat* and to avoid *zarar* which was followed by suit. It was asserted that the petitioner had a superior right of preemption being co-sharer and with contiguous property. Suit was resisted and issues were framed whereafter the same was dismissed by learned Civil Judge vide judgment and decree dated 27.3.2008.

10. As regards issue of *Talbs*, it was observed that the petitioner had failed to prove making of any *Talb* and that Muhammad Iqbal in his examination-in-chief had deposed that the plaintiff already had knowledge of sale and that the first demand was shrouded in mystery. By scanning the entire evidence and the pleadings, learned Civil Judge observed that the petitioner had not succeeded in proving first *Talb*, as such, plea of second *Talb* was untenable. It was observed that the petitioner's stance was that he was informed of the sale by Muhammad Iqbal who while appearing as PW2 contradicted the stance of petitioner by stating that the petitioner/plaintiff had told him about the sale and stated that he did not know personally about the sale of suit property. It was thus manifest that the plea of petitioner about the acquisition of knowledge of sale and also making *Talb-e-Muwathibat* did not sound good as the same statement was negated by the alleged informer PW2 Muhammad Iqbal. It was, therefore, rightly observed that petitioner had concocted false story of *Talb-e-Muwathibat*. It was also noted that Muhammad Iqbal PW2 had deposed that about two years prior to the recording of his statement on 31.5.2006, on 15.6.2004 at 11.00 a.m. he was present at his shop when Muhammad

Zubair told him that he was going to file a suit for preemption while the petitioner had deposed about the knowledge of impugned sale on 16.5.2004, therefore, there was great difference in date of knowledge of sale deposed by PW2 and PWs 3, 4 and 5. It was also observed that PW5 Muhammad Ismail had deposed about the time of information of sale by Muhammad Iqbal PW2 as 8:00/9:00 a.m. on 16.5.2004. After minute examination of the statements of PWs it was observed by the courts below that plea of getting information of sale on the date and time as given in the plaint and also the statement of plaintiff, did not corroborate with each other, therefore, the entire story was unbelievable regarding *Talb-e-Ishhad*. It was also observed by the courts below that DW1 Muhammad Rafique had not supported the petitioner in regard to the *Talb-e-Ishhad* and that petitioner had failed to produce any acknowledgement due/receipt showing receipt of notice of *Talb-e-Ishhad* by the vendor. On indepth scrutiny of oral and documentary evidence, it was observed that the petitioner had failed to establish *Talb-e-Ishhad*.

11. On careful review of the evidence it is observed that there is no misreading and nonreading of evidence in the findings recorded by learned Civil Judge and also affirmed in appeal by the learned Addl. District Judge and that no misreading and nonreading could be pointed out, therefore, the findings of the courts below that requisite *Talbs* having not been proved, the alleged right of preemption had extinguished and, therefore, suit could not be decreed. In the course of hearing learned counsel was unable to show any legal or jurisdictional error in the findings recorded by the courts below on the issue of *Talbs*. Rather the argument of learned counsel for the

petitioner was that the compromise having been effected between the petitioner and respondents No.1 and 2 which has not been challenged by them; as such at this stage the court could follow the provisions of Order XXIII, Rule 3, C.P.C. and pass a decree in accordance therewith. It was argued that by compromise the respondent had waived the right to raise any objection about *Talb* in the preemption suit and they could not raise objection as to the maintainability of the suit on account of absence of *Talbs* and that the compromise having been accepted the benefit of the same should be allowed to the petitioner as the respondent had abandoned their right and were estopped from questioning or raising any objection regarding *Talbs* and that doctrine of waiver was applicable.

12. The arguments raised by learned counsel are legally untenable and even otherwise cannot be entertained at this stage. Subsection (1) of Section 13 of Punjab Preemption Act, 1991 declares that right of preemptor shall be extinguished unless the person possessed thereof makes the demand of preemption i.e. *Talb-e-Muwatibat*, *Talb-e-Ishhad* and *Talb-e-Khasumat*. In Muhammad Akram v. Mst. Zainab Bibi (2007 SCMR 1086) it was observed to the effect that that making of *Talbs* was not merely procedural formality but enforcement of right of preemption was dependent on proving the requisite *Talbs* made and that under the law court has not been granted any power to condone any deficiency or deviation in the matter of making *Talbs*. Reference can also be made to case of Fazal Subhan and 11 others v. Mst. Sahib Jamala and others (PLD 2005 SC 977) where it was observed to the effect that provisions of section 13 of Act supra are based on the concept of *Talbs*

which are recognized as rule of Islamic Law of preemption and fulfillment of such requirements was essential for exercise of right of preemption and without *Talb-e-Muwathibat*, *Talb-e-Ishhad* and *Talb-e-Khusumat* would stand extinguished. In Muhammad Ramzan v. Lal Khan (1995 SCMR 1510) it was observed that failure to prove *Talb-e-Muwathibat* would extinguish right of preemption and that right of preemption would be extinguish unless the preemptor makes demand of preemption in the order of (i) *Talb-e-Muwatibat*, (ii) *Talb-e-Ishhad* and (iii) *Talbe-e-Khasumat* and has to make reference of first demand of *Talb-e-Muwathibat* while making second *Talb-e-Ishhad* and none fulfillment of requirement of *Talbs* in the prescribed order would not entitle the preemptor to the decree of preemption and that under section 13 of the said Act right of preemption would stand extinguished unless such demand was made in the prescribed order. In Hakim Ali v. Mst Safia Bibi (1989 CLC 2478) it was observed to the effect that it was not open to the court to decree a suit based on compromise because vendee could not waive the requirement of *Talbs* and that mere agreement that suit be decreed on payment of amount would not be lawful and could not form basis of decree in favour of preemptor. Rule in Muhammad Bakhsh v. Faiz Muhammad and others (PLD 2021 Lah. 52) may also be cited in which it was observed to the effect that law has not granted any power to any court to condone any deficiency or deviation in the matter of demands of preemption or to show any laxity in the matter and that the question whether right of the preemptor be revived at the appellate stage by the conceding statement of defendant did not arise.

13. From the rule in the cases supra it is evident that the petitioner having failed to prove the requisite *Talbs* the right of preemption should extinguish, therefore, no decree could be passed based on any unlawful compromise. Even otherwise the plea of compromise cannot be raised in view of the order passed by the honourable Supreme Court of Pakistan in C.A. No.50 of 2013 whereby the revision petition was to be decided on merits. The arguments raised having been found to be without any basis and against law are turned down.

14. As upshot of the above instant revision petition being devoid of any substance is **dismissed**.

(RASAAL HASAN SYED)
JUDGE

Announced in open Court on 25.2.2026

JUDGE

Approved for reporting

JUDGE

*Imran**